

2020 C L C 1885

[Lahore High Court]

Before Jawad Hassan, J

DEWAN HAMID MASOOD CHISHTI and others----Petitioners

Versus

PROVINCE OF PUNJAB and others---Respondents

Writ Petitions Nos.36842 and 37179 of 2020, decided on 24th August, 2020.

(a) Constitution of Pakistan---

---Arts. 199 & 20---Constitutional petition---Freedom to profess religion and to manage religious institutions---Scope---Petitioners assailed order issued by Secretary, Home Department, wherein it was mentioned that due to COVID-19, the Urs of Baba Farid-ud-Din Masood Ganj Shakar (R.A.) shall not be held this year---Held, that Sub-Committee and District Administration had already given conditional approval in the manner that the Baheshti Darwaza shall be opened for two days instead of five days, therefore, there was no need to interfere with the same---Argument of petitioners that their fundamental rights to life and religion guaranteed under the Constitution were infringed due to restrictions imposed by the Sub-Committee was not admissible because all the fundamental rights were subject to law---Article 20 of the Constitution depicted that every religious denomination and every sect thereof had the right to establish, maintain and manage its religious institutions but subject to law, public order and morality---Petitions were disposed of accordingly.

(b) Constitution of Pakistan---

---Arts. 4 & 5---Right of individuals to be dealt in accordance with law---Loyalty to State and obedience to Constitution and law---Scope---Article 4 of the Constitution has to be read with Art. 5 of the Constitution, which mentions that it is the inviolable obligation of every citizen to obey command of the Constitution, the Law and the Policies made by the Government---Word "inviolable" used in Art. 5(2) of the Constitution means that it is never to be broken and infringed.

President Balochistan High Court Bar Association and others v. Federation of Pakistan and others 2012 SCMR 1784 and Suo Motu Case No.15 of 2019 PLD 2012 SC 610 rel.

(c) Constitution of Pakistan---

---Art. 5---Loyalty to State and obedience to Constitution and law---Scope---Every citizen, in order to secure fundamental rights, has to adhere to the Standard Operating Procedures

(SOPs) issued from time to time by the Government, which are binding on him under the Doctrine of Sovereignty.

National Bank of Pakistan v. Iftikhar Rasool Anjum and others 2017 PLC (C.S.) 453 and Bahadur Khan and others v. Federation of Pakistan through Secretary Ministry of Finance, Islamabad and others 2017 SCMR 2066 ref.

Mst. Fatima Faryad and others v. Government of Punjab and others 2020 CLC 836 rel.

Raja Taswar Iqbal and Ms. Ammara Liaquat Bhatti for Petitioners (in W.P. No.36842 of 2020).

Syed Muhammad Ali Sherazi for Petitioner (in W.P. No.37179 of 2020).

Barrister Muhammad Umair Khan Niazi, Additional Advocate-General, Yasir Farid, ADC (Revenue), Pakpattan Sharif, Dr. Tahir Raza Bukhari, Director General, Auqaf Department, Tassadaq Hussain, D.S.P. Legal Pakpattan Sharif, Dr. Ahsan Muneer Bhatti, DS-IS, Home Department, Lahore and Ahmad Bilal, Section Officer, IS-II, Home Department, Lahore for Respondents.

ORDER

JAWAD HASSAN, J.----Through this single order I intend to dispose of this Petition as well as the connected Writ Petition No.37179 of 2020 titled as "Mehboob Qamar v. Government of the Punjab and others"

2. The Petitioners through this writ Petition under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973 (the "Constitution") have impugned the order dated 28.07.2020 issued by the Respondent No.2/Secretary, Home Department, Government of the Punjab, Lahore wherein it is mentioned that due to the COVID-19, the Urs of Baba Farid-ud-Din Masood Ganj Shakar (R.A.) shall not be held this year.

3. Learned counsel for the Petitioner contends that the Petitioner No.1 is Sajjada Nasheen of the Shrine of Baba Farid-ud-Din Masood Ganj Shakar (R.A.). That during first week of August, 2020 the Government has already lifted the lock-down and has allowed all the commercial activities in the country, therefore, the impugned notification regarding non-holding of Urs of Baba Farid-ud-Din Masood Ganj Shakar (R.A.) is against the Law. He further adds that the Zonal Administrator Auqf, Lahore Zone, has already permitted holding of Urs of Hazrat Baba Bulhay Shah, therefore, the Respondents have treated the Petitioner discriminately. Hence, the impugned order is liable to be set aside.

4. Learned Law Officer objected to the maintainability of this Petition and submitted that though the Corona virus cases have witnessed massive decline in Pakistan in recent days after which the Government of Pakistan on recommendations of the National Command and Operation Centre (NCOC) has decided to end the lockdown from 10.8.2020 and reopened the

country i.e. Public Transport, Trains, Air Travel, Restaurants, Theatres, Cinemas, Playgrounds, Shrines, Metro, Gyms, Parks, Tourist Attractions, Market and Malls, etc. but in the video-link meeting Cabinet Sub-Committee on Law and Order of Home Department, Government of the Punjab (the "Sub-Committee") held on 18.08.2020 to review the arrangements pertaining to the aforesaid Urs made by the District Administration Committee Pakpattan, took the following decision:

"The Baheshti Darwaza shall be opened during 5th and 6th Muharram-ul-Harram nights (this year number of nights shall be reduced from 05 to 02)."

Learned Law Officer submitted that as per the order dated 09.08.2020, regarding withdrawal of lockdown passed by the Primary and Secondary Healthcare Department, Government of the Punjab, the religious congregation shall be allowed only after the approval from concerned administration and consequently the District Administration has already allowed the ceremonial rituals of the aforesaid Urs with token participation. Therefore, it is inviolable obligation of every citizen to obey command of the Constitution, the Law and the Policies made by the Government for the betterment and the protection of their lives.

5. Arguments Heard. Record Perused.

6. Brief facts are that an outbreak of corona virus disease (COVID-19) caused by the 2019 novel corona virus (SARS-COV2) rapidly spread across the world since December 2019, from Wuhan, Hubei Province, China to 165 countries and territories. The World Health Organization (WHO) officially declared it as a public health emergency of international concern on 30.01.2020, and ultimately as a global pandemic on 11.03.2020.

7. Pakistan was unprepared for a massive pandemic of COVID-19. After declaration of COVID-19 as a pandemic, the Government of Pakistan accorded it highest priority and a meeting of the National Security Committee (NSC) was held to deal with the threat of COVID-19. A detailed Action Plan was issued by the Government of Pakistan. It provided for the background, the steps to be taken and the short-term, medium-term and long-term measures to be undertaken. Detailed SOPs for check-up at all points of entry into the country were also issued. The matter was treated as that of national security issue because the lives of citizens of Pakistan are to be protected by the Government which is the Fundamental Right guaranteed under Articles 9 and 14 of the Constitution.

8. Meanwhile, the Federal Government established a National Coordination Committee (NCC), to formulate and implement a comprehensive strategy to stop the transmission of the COVID-19 and mitigate its consequences. Decision to form National Coordination Committee was taken during the NSC meeting. NCC comprised of Federal Ministers concerned, Chief Ministers, Surgeon General of Pakistan Army, and representatives of DG ISI, DG ISPR as well as DG military operations. The NCC designated the National Disaster Management Agency (NDMA) as the leading operational agency. In each province the Chief Ministers convened task forces to coordinate the response, with the Provincial Disaster Management Agencies (PDMA) as the leading provincial operational agency.

9. Moreover COVID-19 Pandemic obligated the Government to come up with a new

controlling institution namely 'National Command and Operations Center' (NCOC), which later on emerged as an example of representative governance. NCOC was established on 31.03.2020 and functioning as the "nerve center for timely decision-making" on COVID-19. NCOC acts as the implementation arm of the NCC, the government's lead agency in the anti-COVID-19 campaign. One of NCOC's key functions is to ensure effective coordination between Federal and Provincial Governments to deal with the pandemic. Now, NCOC is working as one-window operation to collaborate and articulate the national efforts against COVID-19, enhance informed decision-making and ensure implementation of decisions of the NSC and NCC.

10. All the government departments continued to perform their duties and functions even in the lockdown situations, but with strict observance of SOPs, chalked out by NCOC in this regard. Meaning thereby during turmoil spell of COVID-19 the Government tried its level best to work for the betterment and safety of general public.

11. It is worth noticing that life of every citizen of Pakistan has to be protected under the Article 9 of the Constitution which clearly states that "no person shall be deprived of life or liberty save in accordance with law." Therefore, the arguments of learned Law Officer to this extent are adequate.

12. Undoubtedly under Article 4 of the Constitution, the Petitioners have an inalienable right to be treated in accordance with law but this Article has to be read with Article 5 of the Constitution, which mentions that it is inviolable obligation of every citizen to obey command of the Constitution, the Law and the Policies made by the Government. The Article 5(2) of the Constitution states that:

"Obedience to the Constitution and law is the inviolable obligation of every citizen wherever he may be and of every other person for the time being within Pakistan."

13. The word "inviolable" used in Article 5(2) of the Constitution means that it is never to be broken and infringed. In the case of President Balochistan High Court Bar Association and others v. Federation of Pakistan and others (2012 SCMR 1784), august Supreme Court of Pakistan has held that "to be loyal to the State is the basic duty of all citizens and they have to be obedient to the Constitution and the law, wherever they may be. Thus, adherence to the Constitution and the Law by the citizens is mandatory. Non-compliance of the Constitution and the Law makes a citizen liable for action, in accordance with law". It would also include principles of natural justice, procedural fairness and procedural propriety. Laws are always made not to be violated but to be obeyed. In Suo Motu Case No.15 of 2009 (PLD 2012 SC 610) august Supreme Court of Pakistan held that it is expected from every citizen of Pakistan that he shall be loyal to the State and the basic duty of every citizen is to be obedient to the Constitution and law as ordained under Article 5 of the Constitution. Respect for law is never maintained by force but by the appreciation of the reasons, appreciating its veracity and through obedience. Unfortunately, sometimes, the law falls in crisis due to misunderstanding or lack of vision.

14. In order to secure fundamental rights, every citizen has to adhere to the SOPs issued from time to time by the Government which are binding on them under the Doctrine of

Sovereignty. This Court in the recent judgment titled, *Mst. Fatima Faryad and others v. Government of Punjab and others* (2020 CLC 836) held that:

"under the Doctrine of Sovereignty they are bound to adhere to their commitment in the light of dictum laid down in the case of *Dewan Salman Fibber Ltd. and others v. Federation of Pakistan, through Secretary, Ministry of Finance and others* (2015 PTD 2304) whereby this Court while laying emphasis on the impotence of the Government adhering to severing commitments made by it, whether in the form of the statutory orders or notification issued by it or in the shape of policies announced by it held that "the commitments made on behalf of the Government of the Islamic Republic of Pakistan should neither be lightly disregarded nor deliberately ignored. The orderly development of a civilized society requires that citizens should be entitled to place implicit faith and confidence on representations which are made by or on behalf of the duly constituted governmental authorities. The importance of this underlies the sustained thrust towards the industrialization of the country in which both the nationals of Pakistan as well as nationals of foreign countries should have complete confidence that official commitments will be duly honored and acted upon in letter and spirit."

This view has further been fortified by a learned Division Bench of this Court in the judgment reported as *National Bank of Pakistan v. Iftikhar Rasool Anjum and others* (2017 PLC (C.S.) 453), which has been upheld by the Hon'ble Supreme Court of Pakistan in the case of "*Bahadur Khan and others v. Federation of Pakistan through Secretary Ministry of Finance, Islamabad and others*" (2017 SCMR 2066).

15. Anxiety in people-loneliness and the fear of death were the prominent problems at initial outbreak of COVID-19, but by the grace of Almighty Allah, now the situation is altogether different due to efforts of both the Government and the NCOC, which is highly appreciated. Presently sharp decline or interruption in COVID-19 has been observed. Government has yet not claimed the absolute ending of COVID-19. National and International experts, closely observing all about the COVID-19 are unable to give any deadline about complete vanish of turmoil pandemic from the earth. As regard the issue in hand, the Sub-Committee and District Administration has already given the conditional approval in the manners that the Bahesht Darwaza shall be opened during 5th and 6th Muharram-ul-Harram nights this year reducing the number of nights from 05 to 02, therefore, there is no need to interfere with the same. However as the minutes of meeting dated 22.07.2020 and 18.08.2020 of the Sub-Committee shows that fool proof/heightened security and others arrangements shall be ensured on the event of Urs of Baba Fraid-ud-Din Masood Ganj-e-Shakar (R.A.) in coordination with all departments. Moreover all the events i.e. (1) Traditional Rasoomat, (2) Opening of Baheshti Darwaza, (3) Prohibition on subletting/hosting for zaireen and (4) and establishment of District Control Rooms have been noted and the concerned District Administration has taken appropriate decisions. Furthermore it has been found that the Commissioner Sahiwal Division highlighted that Deputy Commissioner and DPO Pakpattan are in touch with the family of Sajjada Nasheen of Darbar Baba Farid-ud-Din Masood Ganj-e-Shakar and he is cooperating and all arrangements are in place as per previous practice.

16. The argument of the learned counsel for the Petitioners that their fundamental rights to life and religion guaranteed under the Constitution have been infringed due to restrictions imposed by the Sub-Committee is not admissible because all the fundamental rights guaranteed under the Constitution are subject to law. Article 20 of the Constitution clearly depicts that the freedom to profess religion and to manage religious institutions and every religious denomination and every sect thereof shall have the right to establish, maintain and manage its religious institutions are subject to law, public order and molarity. In this case the Home Department of Government of the Punjab through its Committee has already dealt in detail the Law and Order situation regarding the Urs. Under Schedule 2 of the Punjab Government Rules of Business, 2011 (the "Rules") the mandate of Home Department is to make legislation and policy formulation for public order and internal security and to administer various Laws specified therein. Therefore, for the protection of lives of the Petitioners and Devotees/Zaireen of Hazrat Baba Farid-ud-Din Ganj Shakar (R.A.), the Respondents/State Departments / Agencies are directed to ensure strict observance of decision of the Sub-Committee, SOPs laid down by NCOC and the Punjab Government, during the Annual Urs/Rituals. It will also be the obligatory duty of the Petitioners and devotees/zaireen to follow the internal SOPs, guidelines of Government regarding Social-Distance and Sanitization etc. during the Rasoomat of Urs.

17. In view of above, this Petition as well as the connected Writ Petition No.37179 of 2020 stand disposed of.

SA/D-7/L

Order accordingly.